THIS APPEAL INVOLVES A MATTER SUBJECT TO EXPEDITED DISPOSITION UNDER RULE 604(h)

No. 131280

IN THE SUPREME COURT OF ILLINOIS

SEAN GRAYSON, Movant, -vs- JUSTICES OF THE ILLINOIS APPELLATE COURT, FOURTH DISTRICT Respondents.	)	Original Motion for Supervisory Order Pursuant to Supreme Court Rule 383. Trial Court No. 24 CF 909 Appeal No. 4-24-1100

EMERGENCY MOTION FOR SUPERVISORY ORDER

IN RULE 604(H) APPEAL

Movant, Sean Grayson, by Carolyn Klarquist, Director of Pretrial Fairness Appeals, and Deborah K. Pugh, Assistant Appellate Defender, Office of the State Appellate Defender, respectfully files this emergency motion for supervisory order to grant his release from pretrial detention, with conditions to be imposed by the circuit court, during the pendency of the State's petition for leave to appeal and subsequent appellate proceedings, should the petition for leave to appeal be granted.

In support of this motion, counsel states:

1. On July 18, 2024, the circuit court ordered Sean Grayson detained pending disposition of his criminal case pursuant to the Pretrial Fairness Act. (C. 25) *See* Pub. Act 101-652, § 10-255, 102-1104, § 70. On August 19, 2024, the circuit court denied Grayson's motion for relief, and Grayson file a timely notice of appeal. (C. 123, 125) The

Office of the State Appellate Defender was appointed to represent Grayson on September 3, 2024.

2. On November 27, 2024, the appellate court ruled that the State had failed to meet its burden regarding conditions and remanded the case for a hearing on conditions of release. *People v. Grayson*, 2024 IL App (4th) 241100-U, ¶¶ 59, 62.

3. On December 2, 2024, the State filed a motion to stay the mandate, arguing that because this is a "high-profile case," Grayson's release from pretrial detention, as ordered by the appellate court, could lead to "a high likelihood of societal upheaval" and "leave the citizens of Illinois with diminished confidence in the criminal justice system." (See Supporting Record)

4. Also on December 2, 2024, Grayson filed an objection to the State's motion to stay the mandate, arguing that the State had not provided a compelling reason to stay the mandate. (See Supporting Record) Under Supreme Court Rule 604(a)(3), a "defendant shall not be held in jail . . . during the pendency of an appeal by the State, or of a petition or appeal by the State under Rule 315(a), unless there are compelling reasons for his or her continued detention[.]" Ill. Sup. Ct. R. 604(a)(3). "Compelling reasons are forceful and impelling reasons irresistible in sense and purpose" over which "reasonable minds would not diverge." *People v. Wells*, 279 Ill. App. 3d 564, 569 (5th Dist. 1996). Under this rule, continued detention should be "rare." *Id.* "The rule favors release." *People v. Baltimore*, 381 Ill. App. 3d 115, 125 (2d Dist. 2008).

5. These principles, which apply generally to State appeals, apply with special force to appeals under the pretrial release statute which presumes that a "defendant is entitled to release" on conditions. 725 ILCS 5/110-2(a) (West 2024). Routine stays of

mandate in detention cases could result in appellate court orders for release being ignored until they become moot due to the resolution of the case below.

6. On December 3, 2024, the appellate court entered an order finding that "the State has failed to show compelling reasons for defendant's continued detention during the pendency of the petition," yet, it stayed the issuance of the mandate for 35 days in order "to allow the State to pursue a further of the mandate directly from this Court." (See Supporting Record)

7. On December 4, 2024, the State filed a petition for leave to appeal in this Court.

8. Given the appellate court's conclusive determination that the State failed to show compelling reasons for Grayson's continued detention, he asks this Court to issue a supervisory order directing the appellate court to remand the matter to the circuit court with directions that it promptly "set the case for a hearing to determine the least restrictive conditions of defendant's pretrial release pursuant to section 110-5 of the Code (725 ILCS 5/110-5) (West 2022))." *Grayson*, 2024 IL App (4th) 241100-U, ¶ 68.

WHEREFORE, Movant respectfully requests that the Court grant this motion.

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VERIFICATION

Under the penalties provided in law pursuant to Section 1-109 of the Code of Civil Procedure, the undersigned certifies that the statements set forth in this motion are true and accurate.

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